



DEPARTMENT OF PUBLIC SAFETY GEORGIA STATE PATROL

PURSUIT CRITIQUE

TROOPER NAME – TFC Eric Shaw #443

Work Assignment: Troop/Division - A; Post/Unit – 28 - Jasper

INCIDENT REPORT # DPS00151493

Related Crash Reports: None ; _____ ; _____

P.I.T. Involved: No

S.C.R.T. Involved: No

Special Investigations Unit Involved: No

Use of Force Involved: No

MEETING

1. Document the date, time and location of the pursuit critique meeting with the involved trooper.

Date: 04/17/2024

Time: 1326 hours

Location: Troop A Command

2. List all personnel present at the meeting by name and rank. Include the trooper, an NCO in whose territory the pursuit was terminated, and the trooper's immediate supervisor.

Personnel present: Captain Shawn Prather #11, Cpl. Zeb Hensley #202 (conference call) and TFC Eric Shaw #443.

INITIATION

1. Provide the date and time the trooper became involved in the pursuit.

Date: 4/14/2024

Time: 1950 hours

2. Explain the circumstances that led to the trooper's involvement in the pursuit.

On April 14, 2024, at approximately 1954 hours, TFC Shaw was patrolling Talking Rock Road near Johnson Road in Pickens County. TFC Shaw observed a sport bike approaching from the rear at a high rate of speed. TFC Shaw checked the motorcycle's speed at 72-mph in the 45-mph zone. As the motorcycle approached, the suspect slowed down. TFC Shaw pulled off onto the shoulder to let the suspect pass so that he could conduct a traffic stop. As the suspect passed, TFC Shaw observed it was a blue and white sport type motorcycle and it did not have a tag displayed. TFC Shaw attempted to conduct a traffic stop and a pursuit ensued.

3. If trooper's involvement was the result of a request from another agency, provide details regarding the request.

☒ N/A If Yes, explain:

4. List the number and identity of other agencies and officers involved in the pursuit.

☒ N/A If needed, list:

5. If other occupants were in the patrol vehicle, identify them and state their reason for being in the vehicle.

☒ N/A If Yes, list:

6. Did the trooper take appropriate safety precautions?

☒ Yes ☐ No If no, explain:

7. Did the trooper eliminate distractions such as FM radio noise?

☒ Yes ☐ No If no, explain:

COMMUNICATION

1. If the reporting trooper initiated the pursuit by means of observing a violation and attempting a traffic stop, explain the communication that took place between the trooper and the CEO.

☐ N/A If Yes, explain: TFC Shaw observed a traffic violation and attempted to conduct a traffic stop. The suspect immediately accelerated and began fleeing. TFC Shaw notified the Troop A Communications Center that he was in a pursuit. The Troop A Dispatch Center received this information and created a CAD call for the pursuit.

2. Did the trooper relay pertinent information to the CEO including:

- Location and direction of travel.
- Description of the pursued vehicle.
- Number and description of occupants.
- Information regarding the use of firearms, threat of force, or other hazard.
- Options for terminating the pursuit.
- Observed danger to public safety.
- Any need for assistance.

☒ Yes ☐ No If no, explain:

3. Explain any communication that took place between the CEO and other law enforcement agencies or officers in the area.

☐ N/A

Explain: Once TFC Shaw advised that he was in a pursuit, Troop A Dispatchers cleared the radio for emergency traffic before conducting a broadcast of the pursuit to all Troop A Troopers. The Troop A Communications Center also notified the Pickens County 911 Center of the pursuit.

4. If the reporting trooper became involved in the pursuit at the request of another agency, explain any communication that took place between the trooper and another officer of the requesting agency. Give details of communication between the CEO and the requesting agency regarding the location, direction of travel, nature of the offense, any pending warrants, and details of erratic driving behavior illustrating the potential danger to the public if the suspect is not immediately apprehended.

☒ N/A

If Yes, explain:

5. Did the trooper articulate his observations?

☒ Yes☐ No

If no, explain:

6. At the conclusion of the pursuit, did the trooper advise the CEO immediately, so other units would be familiar with the location to offer assistance, or slow in an effort to reduce the likelihood of further risk of injury to either a trooper or a member of the general public?

☒ Yes☐ No

If no, explain:

7. Discuss any needed areas of improvement with the CEO.

☒ N/A

If Yes, explain:

PURSUIT

1. Describe the route the pursuit traveled, its duration and distance.

Describe: The pursuit initiated on Talking Rock Road near Johnson Road, traveling south. The pursuit continued south, entering Main Street and the city limits of Jasper. The pursuit continued south and terminated near Spring Street. The pursuit lasted approximately 2 minutes, 20 seconds, and traveled a total distance of approximately 3 miles.

2. Were the trooper's actions during the pursuit objectively reasonable?

☒ Yes☐ No

If no, explain:

3. If the pursuit traveled into another post's territory, explain whether the initiating trooper yielded to a trooper whose territory the pursuit was in.

☒ N/A

If Yes, explain:

4. If the initiating trooper yielded the primary position to another unit, explain whether he proceeded to the termination point of the pursuit to provide guidance and information for the arrest of the violator.

☒ N/A

If Yes, explain:

5. Explain if there were any factors during the pursuit that indicated the possible commission of a felony.

☒ N/A

If Yes, explain:

6. Did the trooper articulate his observations?

☒ Yes ☐ No If no, explain:

7. Did the trooper practice commentator driving?

☒ Yes ☐ No If no, explain:

8. Did the trooper remain calm and professional during the pursuit?

☒ Yes ☐ No If no, explain:

DRIVING SKILLS

1. Did the trooper use due caution when operating his vehicle during the pursuit?

☒ Yes ☐ No If no, explain:

2. Were the driving skills/techniques initiated appropriately?

☒ Yes ☐ No If no, explain:

3. Were the driving skills/techniques appropriate during the pursuit?

☒ Yes ☐ No If no, explain:

4. Were the driving skills/techniques appropriate during termination?

☒ Yes ☐ No If no, explain:

5. Did the trooper appear to experience adrenalin rush, tunnel vision, or any other internal/external factors?

☒ No If Yes, explain:

6. Did the trooper get into the danger zone due to adrenalin rush, tunnel vision, or other factors?

☒ No If Yes, explain:

EQUIPMENT

1. Were the blue lights and siren in operation during the entire pursuit?

☒ Yes ☐ No If no, explain:

2. If the patrol car was equipped with wig-wag headlights, were they in operation during the entire pursuit?

☒ Yes ☐ No If no, explain:

3. Was the in-car camera working properly?

☒ Yes ☐ No If no, explain:

4. Was the trooper's microphone working properly?

☒ Yes ☐ No If no, explain:

TERMINATION

1. Did the trooper continue the pursuit to a conclusion? If not, explain the reasons.

☒ Yes ☐ No If no, explain:

2. Was there a good probability of the suspect's arrest at a later time because of positive identification?

☒ N/A If Yes, explain:

3. Articulate attempts taken by the trooper to utilize pursuit termination techniques, such as tire deflating devices, roadblocks, P.I.T. maneuver, and trooper discretion.

☒ N/A Explain:

4. Expound on safety precautions utilized by the trooper during and after the pursuit.

☐ N/A Explain: TFC Shaw demonstrated due regard at all intersections controlled by a traffic signal or stop sign. TFC Shaw also verbally cleared these intersections as he proceeded. TFC Shaw didn't take any unnecessary risks during the pursuit and discontinued the pursuit after losing visual contact with the suspect.

5. Articulate the existing traffic conditions during the pursuit, realizing the conditions may differ at various times during the pursuit.

Explain: The pursuit occurred during daylight hours with clear skies and the roadway surface was dry. The traffic conditions on Interstate 75 would be described as moderate.

6. Address whether there are any conditions that would create additional danger to the public by continuing the pursuit.

☐ N/A If Yes, explain: Yes, TFC Shaw lost visual contact with the suspect and discontinued the pursuit.

7. Address whether there were any conditions that necessitated the pursuit being brought to an immediate conclusion and describe the conditions.

☐ N/A If Yes, explain: Yes, TFC Shaw lost visual contact with the suspect and discontinued the pursuit.

8. Establish whether the violator was an immediate threat to the trooper, the public or themselves.

☐ N/A If Yes, explain: The violator fled at high speeds, passed other motorists in no passing zones, failed to stop for two stop signs and one traffic signal. The suspect's high speed reckless driving created a immediate threat the public and all involved.

9. Outline whether the use of deadly force was justified and if so, why it was justified.

☒ N/A If Yes, explain:

10. Establish whether the method of termination was reasonable based on the facts gathered during the pursuit, and state those facts.

☐ N/A If Yes, explain: Yes, TFC Shaw lost visual contact with the suspect and discontinued the pursuit.

11. If there were any injuries, state who received them, the type and severity.

☒ N/A If Yes, explain:

12. If there was a fatality, provide basic facts surrounding the circumstances.

☒ N/A If Yes, explain:

13. Address any damage to vehicles.

☒ N/A If Yes, explain:

TROOPER'S ABILITIES AND EXPERIENCE

1. Prior pursuits (compare if appropriate).

☐ N/A If Yes, explain: TFC Shaw has been involved in numerous pursuits during his career as State Trooper.

2. Past use of techniques and high speed driving.

☐ N/A If Yes, explain: TFC Shaw has received EVOC and Advanced EVOC Training. He has also received the annual Pursuit Liability Training.

ISSUES ADDRESSED

1. Positives.

☐ N/A If Yes, explain: TFC Shaw demonstrated due regard at all intersections controlled by a traffic signal or stop sign. TFC Shaw also verbally cleared these intersections as he proceeded. TFC Shaw didn't take any unnecessary risks during the pursuit and discontinued the pursuit after losing visual contact with the suspect.

2. Areas for improvement.

☒ N/A If Yes, explain:

3. Other considerations.

☒ N/A If Yes, explain:

RESPONSE FROM TROOPER OR SUPERVISOR

1. Allow trooper and supervisor an opportunity to respond or add comments.

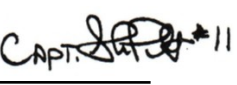
☒ N/A If Yes, explain:

CORRECTIVE ACTION TAKEN

1. Describe any corrective action taken as a result of the trooper's actions during the pursuit.

☒ N/A

If Yes, explain:

Captain Shawn Prather #11 
Reviewing Officer

4/17/2024
Date